

**Court No. - 21**

**Case :-** WRIT - C No. - 4693 of 2024

**Petitioner :-** Shrawan Yadav

**Respondent :-** State Of Up And 4 Others

**Counsel for Petitioner :-** Raj Kumar Singh, Akhilesh Kumar Singh

**Counsel for Respondent :-** C.S.C.

**Hon'ble Manoj Kumar Gupta, J.**

**Hon'ble Kshitij Shailendra, J.**

1. List as fresh on **27.02.2024** showing name of Shri Udit Chandra, as counsel for respondent no.2.

(Kshitij Shailendra, J.)      (Manoj Kumar Gupta, J.)

**Order Date :-** 20.2.2024

Ankit.

**Court No. - 21**

**Case :-** WRIT - C No. - 4693 of 2024

**Petitioner :-** Shrawan Yadav

**Respondent :-** State Of Up And 4 Others

**Counsel for Petitioner :-** Akhilesh Kumar Singh,Raj Kumar Singh

**Counsel for Respondent :-** C.S.C.,Udit Chandra

**Hon'ble Manoj Kumar Gupta,J.**

**Hon'ble Kshitij Shailendra,J.**

1. Shri Udit Chandra, learned counsel for the respondent, Electricity Department, prays for time to obtain instruction.

2. Put up as fresh on 6 March 2024.

**Order Date :-** 27.2.2024

Mukesh Kr.

(Kshitij Shailendra,J.)      (Manoj Kumar Gupta,J.)

**Court No. - 21**

**Case :-** WRIT - C No. - 4693 of 2024

**Petitioner :-** Shrawan Yadav

**Respondent :-** State Of Up And 4 Others

**Counsel for Petitioner :-** Akhilesh Kumar Singh,Raj Kumar Singh

**Counsel for Respondent :-** C.S.C.,Udit Chandra

**Hon'ble Manoj Kumar Gupta,J.**

**Hon'ble Kshitij Shailendra,J.**

1. Connect and list with Writ-C No. 3458 of 2024.
2. In all connected cases where interim order is in operation, the same will remain in force till the next date.

**Order Date :-** 6.3.2024

Mukesh Kr.

(Kshitij Shailendra,J.)

(Manoj Kumar Gupta,J.)

**Court No. - 21**

**Case :-** WRIT - C No. - 4693 of 2024

**Petitioner :-** Shrawan Yadav

**Respondent :-** State Of Up And 4 Others

**Counsel for Petitioner :-** Akhilesh Kumar Singh, Raj Kumar Singh

**Counsel for Respondent :-** C.S.C., Udit Chandra

**Hon'ble Manoj Kumar Gupta, J.**

**Hon'ble Kshitij Shailendra, J.**

1. The petitioner has challenged the recovery citation dated 31.08.2021 issued by respondent no.5 for recovery of electricity dues from the petitioner.

2. Sri Udit Chandra, learned counsel appearing for the respondent-Electricity Department, has filed short counter affidavit of the concerned Executive Engineer stating that the impugned recovery certificate has been withdrawn on 21.02.2024. He submits that since the recovery has been withdrawn on account of procedural defect, therefore, the Department reserves liberty to pass a fresh order.

3. Accordingly, the petition is **disposed of** as infructuous but with liberty to the respondent-Electricity Department to pass fresh order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005.

**Order Date :-** 1.4.2024

AKShukla/-

**(Kshitij Shailendra, J.)      (Manoj Kumar Gupta, J.)**